

of transfer served on all parties as required by Code of Civil Procedure section 399(b). It is important to note that each document originally filed in Sacramento County and then transferred to Placer County bears the original file-stamp from Sacramento County and the June 10, 2021 file-stamp from Placer County.

Plaintiff understands Section 399's requirement that the court "shall have and exercise over the action or proceeding the like jurisdiction as if it had been originally commenced in that court, all prior proceedings being saved" means that the transferee court must file-stamp all documents the same date that they were file-stamped by the transferor court. The court has searched but is unable to find any legal authority interpreting this language the way plaintiff does, nor has the court located any legal authority that would permit the transferee court clerk to file-stamp a date prior to the date of transfer. Plaintiff has failed to show a clerical error in need of correction within the meaning of Code of Civil Procedure section 473(d).

The motion is denied.

7. S-CV-0050791 Conrad, Ethan v. Gill, Manpreet

Plaintiff's motion for attorneys' fees and prejudgment interest is continued to be heard on **July 14, 2026 at 8:30 a.m. in Department 42**. Plaintiff seeks an award of attorneys' fees as prevailing party after the court granted plaintiff's motion for summary judgment. (Ruling on Submitted Matter, Dec. 8, 2025.) However, there is no evidence plaintiff served the notice of entry of order on defendant. Moreover, plaintiff has not submitted any proposed judgment to the court. Plaintiff is directed to forthwith file and serve a notice of entry of order for the court's December 8, 2025 ruling and to submit a proposed judgment following summary judgment for the court's review.

8. S-CV-0051034 Martinez, Kari v. Acosta, Angelina Aka Rey-Herrera

Motion to Compel Deposition of Defendant's Attorney Robert Gonzalez under CCP § 2025.450; and to Recuse Defense Counsel under California State Bar Rule 3.7; Sanctions Requested

Plaintiff moves to compel the deposition of defendant's attorney Robert Gonzalez. Defendant has not filed a response.

The Court of Appeal has outlined the standard for a motion to depose opposing counsel:

Depositions of opposing counsel are presumptively improper, severely restricted, and require "extremely" good cause—a high standard. (*Spectra-Physics, Inc. v. Superior Court* (1988) 198 Cal.App.3d 1487, 1493.) See *Trade Center Properties, Inc. v. Superior Court* (1960) 185 Cal.App.2d 409, 411.) There are strong policy considerations against deposing an opposing counsel. The practice runs counter to the adversarial process and to the state's public policy to "[p]revent attorneys from taking

undue advantage of their adversary's industry and efforts.” (Code Civ. Proc., § 2018.020 (b).) ““Discovery was hardly intended to enable a learned profession to perform its functions ... on wits borrowed from the adversary.”” (*Spectra–Physics, Inc.*, *supra*, 198 Cal.App.3d at p. 1494, quoting *Hickman v. Taylor* (1947) 329 U.S. 495, 516 (conc. opn. of Jackson, J.).)

To effectuate these policy concerns, California applies a three-prong test in considering the propriety of attorney depositions. First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege? (*Spectra–Physics, Inc.*, *supra*, 198 Cal.App.3d at pp. 1494-96; see also *Estate of Ruchti* (1993) 12 Cal.App.4th 1593, 1601, [affirming protective order against deposition of opposing counsel].)

Carehouse Convalescent Hospital v. Superior Court (2006) 143 Cal.App.4th 1558, 1562-63.

Plaintiff has not met the standard in *Carehouse Convalescent Hospital*. Moreover, plaintiff has not shown how she can compel the deposition of a non-party, absent a subpoena, pursuant to Code Civ. Proc., § 2025.450.

Based on the foregoing, the motion to compel the deposition of defendant’s attorney Robert Gonzalez is denied. The motion to recuse defense counsel under California State Bar Rule 3.7 is denied. The request for sanctions is denied.

9. S-CV-0052777 Reed, Nancy v. Colaw, Ryan

Review Hearing

The court scheduled this hearing for review of a first amended cross-complaint filed under seal pursuant to Insurance Code section 1871.7(e)(2). As a review of the court file reveals no first-amended cross-complaint has been lodged with the court, the review hearing is dropped from calendar.

10. S-CV-0053149 Grussenmeyer, Bonnie J v. Alley, Laura C

This tentative ruling is issued by the Honorable Michael A. Jacques. If oral argument is timely requested, it will be heard on **May 21, 2026 at 8:30 a.m. in Department 40** by Commissioner Jacques.

Motion to Seal

Petitioner moves to seal pages 31 through 184 of the notice of errata filed on November 24, 2025 pursuant to California Rules of Court, rules 2.550 and 2.551. No opposition has